

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Admissions (Set One); Request for Monetary Sanctions in The Amount Of \$5,410.00

Plaintiff's motion to compel further responses to Requests for Admissions, Set One, is GRANTED IN PART and DENIED IN PART.

The motion is GRANTED as to Request No. 2. Defendant objects and then states they lack sufficient knowledge and information to be able to admit or deny the request. Code of Civil Procedure section 2033.220, subdivision (3)(c) states that "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party *shall* state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (*Italics added.*)

The code section is clear: if Defendant is unable to admit or deny the matter, they must state that they have conducted a reasonable inquiry and the information known or readily obtainable is insufficient for the Defendant to admit or deny. Further, Defendant could have admitted in part and qualified the response. (See, Code Civ. Proc. § 2033.220, subd. (b)(1).) For example, as stated in their opposition statement "Defendant understands that Plaintiff began his employment nearly 20 years ago in 2007, but does not know when his employment actually began, including whether it was 'on or around June 1, 2007.'" (Opp. 2:15-17.) Accordingly, Defendant is ordered to provide a further verified, code-compliant, response to Request No. 2.

The motion is DENIED as to Request No. 10. Even with the limiting language in Plaintiff's meet and confer letter, dated March 25, 2026, of the past four (4) years, the request as drafted is vague and ambiguous as to "hourly employees."

The motion is DENIED as to Request No. 14. Although Plaintiff's meet and confer letter, dated March 25, 2026, adequately limits the response to "Defendant only" (Pltf. March 25, 2026, Ltr., p. 4), it impermissibly creates a conjunctive and/or subparts by incorporating both Labor Code sections 1102.5 and 98.6. (See, Code Civ. Proc. § 2033.060, subd. (f).)

Motion to Compel Defendant Yosemite Valley Beef Packing Company, Inc.'s Further Responses to Requests for Production of Documents (Set One); Request for Monetary Sanctions in the Amount Of \$5,410.00

The motion to compel further responses to Requests for Production of Documents, Set One, is DENIED. At the time of Defendant's response, Defendant had not yet filed or served any answer nor alleged any affirmative defenses. Plaintiff's recourse is to make a supplemental demand pursuant to Code of Civil Procedure section 2031.050.

Sanctions:

The request for monetary sanctions by both parties is DENIED. Both parties acted with substantial justification for bringing and opposing the motions.

26CV-00480

Robert Frank vs Belma Alvarado

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service on Respondent was filed on May 6, 2026.

26CV-01995

Petition of: Jeremiah Kincannon

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication of the petition.
